

From: Robinson, Lucy (EGLE)
Sent: 4/15/2025 6:47:27 AM
To: "mhp@ourhomesofamerica.com" <mhp@ourhomesofamerica.com>
Cc: "Muskegon Co Health Dept
(publichealth.environmentalhealth@co.muskegon.mi.us)"
<publichealth.environmentalhealth@co.muskegon.mi.us>; "Smith, Laura (EGLE)"
<SMITHL16@michigan.gov>; "Worm, Michael (EGLE)" <WORMMM@michigan.gov>; "O'Brien, Connor
(EGLE)" <OBrienC11@michigan.gov>
Subject: Correspondence: Shady Oaks Park MHP VN-017235
Attachments: Shady Oaks Park MHP – VN-017235.pdf

Good day, **Byron Fields**, Shady Oaks Park MHP LLC [Shady Oaks Park MHP]:

Please review the following attached PDF: Shady Oaks Park MHP – VN-017235

This is the only notice you will receive.

SUBJECT: Violation Notice (VN) No. VN-017235
Sanitary Sewage Overflow
Designated Name: Shady Oaks Park MHP

The Violation letter is dated today Tuesday, April 15, 2025. No Hardcopy. ***Please acknowledge the receipt of this email.***

CC's PDF is the ONLY copy you will receive.

If you have questions, please refer them to **Connor O'Brien**, Environmental Quality Analyst, at **616-401-3776**; or at OBrienC11@Michigan.gov. Thank you.

Take care – Be Safe

~Lucy 

Lucy Robinson, District Secretary and FOIA Liaison
Water Resources Division (WRD)
Grand Rapids District Office (GRDO)
Michigan Department of Environment, Great Lakes, and Energy (EGLE)
Phone/Cell: 616-250-7915 Fax: 616-356-0202
RobinsonL6@Michigan.gov
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If you need this information in an alternate format, contact EGLE-Accessibility@Michigan.gov or call 800-662-9278.

**Pollution Emergencies, call the Pollution Emergency Alerting System hotline at 1-800-292-4706*

**EGLE Interactive and Data Driven Environmental Online Services: our [EGLE Maps & Data \(arcgis.com\)](#) page find downloadable Open Data, engaging StoryMaps, and more.*

* MiEnviro Portal contains search to find a Site <https://mienviro.michigan.gov/ncore/external/home>

*FOIA Request:Visit [Freedom of Information Act \(FOIA\) Requests \(michigan.gov\)](#) & select "Submit a FOIA Request"

ATTACHMENT NAME:

Shady Oaks Park MHP – VN-017235.pdf

ATTACHMENT TYPE:

Adobe Portable Document Format (PDF) compound image



GRETCHEN WHITMER
GOVERNOR

STATE OF MICHIGAN
DEPARTMENT OF
ENVIRONMENT, GREAT LAKES, AND ENERGY
WATER RESOURCES DIVISION



PHILLIP D. ROOS
DIRECTOR

April 15, 2025

VIA EMAIL

VN No. VN-017235

Byron Fields
Shady Oaks Park MHP LLC
77 Engle Street
Englewood, New Jersey 07631

Dear Byron Fields:

SUBJECT: Violation Notice (VN) No. VN-017235
Sanitary Sewage Overflow
Designated Name: Shady Oaks Park MHP

The Michigan Department of Environment, Great Lakes, and Energy (EGLE), Water Resources Division (WRD), Grand Rapids District Office (GRDO) has determined that the Shady Oaks Park Mobile Home Park (MHP), located at 1977 Whitehall Road, Muskegon, Michigan 49445, is in violation of Part 31, Water Resources Protection, of the Natural Resources and Environmental Protection Act, 1994 PA 451, as amended (NREPA), MCL 324.3101 *et seq.*, and Mobile Home Parks and Seasonal Mobile Home Parks, administrative rules promulgated pursuant to The Mobile Home Commission Act, 1987 PA 96, as amended, MCL 125.2301 *et seq.*, being Michigan Admin Code R 325.3311 *et seq.* (MHP Rules).

Be advised, Section 3109 of Part 31 of the NREPA states in part,

- (1) A person shall not directly or indirectly discharge into the waters of the state a substance that is or may become injurious to any of the following:
 - (a) To the public health, safety, or welfare.
 - (b) To domestic, commercial, industrial, agricultural, recreational, or other uses that are being made or may be made of such waters.
 - (c) To the value or utility of riparian lands.
 - (d) To livestock, wild animals, birds, fish, aquatic life, or plants or to their growth or propagation.
 - (e) To the value of fish and game.

The WRD received a complaint of a sanitary sewage overflow at the Shady Oaks Park MHP from Public Health – Muskegon County (PHMC) on March 18, 2025. The complaint reported that residents had observed raw sewage discharging from sewage system components and onto the ground of a vacant lot in the MHP at recurring intervals for an extended period. As a result of this discharge, residents of the area have reported immediate health concerns and offensive odors, among other concerns.

Staff of the WRD inspected the complaint site on March 20, 2025. Evidence of untreated or partially treated sewage discharging onto land, including saturated soil and an offensive odor on and around the vacant lot, was present at the time of the inspection. Following inspection of the complaint site on March 20, 2025, WRD staff attempted contact with MHP management at the on-site office. WRD staff also attempted to contact MHP management by phone on March 26, 2025. The WRD has not received a response to the office visit or to two voice messages. The discharge of untreated or partially treated sewage from a sewer system onto land or into the waters of the state is in violation of Part 31 of the NREPA.

Be advised, Section 3112a of Part 31 of the NREPA states in part,

- (1) (...) If untreated sewage or partially treated sewage is directly or indirectly discharged from a sewer system onto land or into the waters of the state, the person responsible for the sewer system shall immediately, but not more than 24 hours after the discharge begins, notify the department; (and) local health departments as defined in section 1105 of the public health code, 1978 PA 368, MCL 333.1105; and a daily newspaper of general circulation.
- (b) At the conclusion of the discharge, in writing or in another manner required by the department, all of the following:
 - (i) The volume and quality of the discharge as measured pursuant to procedures and analytical methods approved by the department.
 - (ii) The reason for the discharge.
 - (iii) The waters or land area, or both, receiving the discharge.
 - (iv) The time the discharge began and ended as measured pursuant to procedures approved by the department.
 - (v) Verification of the person's compliance status with the requirements of its national pollutant discharge elimination system permit or groundwater discharge permit and applicable state and federal statutes, rules, and orders.

Be further advised, Rule 35 of the MHP Rules states in part,

- (6) The owner of a sanitary sewerage system that discharges or permits to be discharged excessive pollutants to the water of the state or to the surface of the ground as a result of a facility breakdown or emergency shall promptly notify [EGLE], the local health department, and the municipality. The notice shall be supplemented by a written report filed with [EGLE] (and) the local health department.

Shady Oaks Park MHP LLC has failed to make the required notifications within 24 hours of the start of the discharge and submit the written report to the WRD at the conclusion of the discharge of untreated sewage. The failure to make the required notifications and submit the written report to the WRD is in violation of Part 31 of the NREPA, and Rule 35 of the MHP Rules.

Be advised, Rule 35 of the MHP Rules states in part,

- (2) Sewerage systems shall be operated and maintained at all times as efficiently as possible in a manner that precludes discharges of excessive pollutants, [and] prevents creation of a public health hazard or nuisance condition.

Shady Oaks Park MHP, LLC has failed to operate and maintain its sewerage system in a manner that prevents creation of a public health hazard or nuisance condition which is in violation of Rule 35 of the MHP Rules.

The violations identified in this Violation Notice is in violation of Part 31 of the NREPA, and the MHP Rules.

Shady Oaks Park MHP, LLC should take immediate action to achieve and maintain compliance with the terms and conditions of Part 31 and the MHP Rules.

Please submit a response to the WRD by **May 16, 2025**. The response should be submitted via the MiEnviro Portal using the "Respond to Violation Notice" form. At a minimum, the response shall include:

1. A description of the steps that were taken (if any) to notify EGLE, the local health department and a daily newspaper of the discharge.
2. Confirmation that Shady Oaks Park MHP, LLC has submitted a complete written report to the WRD via the MiEnviro Portal using the form named Report of Discharge (CSO/SSO/RTB).
3. A description of the corrective actions taken to eliminate the untreated sewage discharge and minimize the adverse impacts of the discharge. This should include dates and invoices for the sewage holding tank and/or sewer line pumping and repairs, and a description of actions taken to remediate the land surface and eliminate the public health threat caused by the discharge.

If you have any factual information you would like us to consider regarding the violations identified in this Violation Notice, please provide them with your written response.

We anticipate and appreciate your cooperation in resolving this matter. Should you require further information regarding this Violation Notice or if you would like to arrange a meeting to discuss it, please contact me at OBrienC11@Michigan.gov; 616-401-3776; or at EGLE, GRDO, WRD, P.O. Box 30458, Lansing, Michigan 48909-7958.

Sincerely,



Connor O'Brien
Environmental Quality Analyst

co/as/lr

cc: Public Health – Muskegon County (via email)
Department of Licensing and Regulatory Affairs, Bureau of Construction Codes,
Licensing and Compliance (via email)